

CM Media and Communication

Cameron Magusic
6 Sorrell Court, Altona Meadows VIC 3028

SOW 1.2 for Agreement to Perform Consulting Services to www.richmclean.com.au

Date	Services Performed By:	Services Performed For:
10/04/19	CM Media and Communication Cameron Magusic 6 Sorrell Court, Altona Meadows VIC 3028	www.richmclean.com.au Footscray VIC 3011

This Statement of Work (SOW) is issued between www.richmclean.com.au ("Client") and CM Media and Communication ("Contractor")

This SOW # 1.2 (hereinafter called the "SOW"), effective as of 14/4/20, is entered into by and between Contractor and Client, and is subject to the terms and conditions specified below. The Exhibit(s) to this SOW, if any, shall be deemed to be a part hereof. In the event of any inconsistencies between the terms of the body of this SOW and the terms of the Exhibit(s) hereto, the terms of the body of this SOW shall prevail.

Period of Performance

The Services shall commence on 14/4/20, and shall continue through to 14/6/20.

Engagement Resources

CM Media and Communication to provide:

Cameron Magusic, a strategic communicator and marketer with over six years' Australian and international experience



Admin access and logins to any new digital channels set up as part of the scope of work

www.richmclean.com.au to provide:

Access to software and digital channels as deemed appropriate

Materials and resources as needed

Scope of Work

Contractor shall provide the Services and Deliverable(s) as follows:



- Assistance with promoting the Client's products through digital channels
- Social media expertise
- Lead generation and conversion strategies and tactics
- Optimisation of digital marketing and communication strategies and tactics
- Monthly measurement and weekly phone call reviews
- Other relevant services as discussed and agreed

Deliverable Materials



- Content through relevant social media channels
- Integration of Client's website and other digital sales channels
- Other relevant deliverables as discussed and agreed

Contractor Responsibilities

CM Media and Communication will act in a professional manner and work towards achievement of deliverables

CM Media and Communication will respond to www.richmclean.com.au's queries on a timely and professional basis



CM Media and Communication will utilise internal and external resources to deliver the work

CM Media and Communication will issue invoices for www.richmclean.com.au's payment within seven (7) business days of the end of the month.

Any other responsibilities deemed necessary to fulfil the scope of work, as agreed in advance of both parties.

Client Responsibilities



www.richmclean.com.au will respond to CM Media and Communication's queries on a timely and professional basis

www.richmclean.com.au will confirm receipt of invoice for payment and will issue payment within seven (7) business days

www.richmclean.com.au will provide items for publication including copy, artworks and related materials deemed necessary to complete the work

Any other responsibilities deemed necessary to fulfil the scope of work, as agreed in advance of both parties.

Fee Schedule

The engagement will be conducted on a commission basis. The total value for the services performed each month shall not exceed 30% of the net profit on all Client products sold through online channels only, where net profit is defined as gross sales less all product supply, discounts, taxes, handling and shipment cost.

Upon completion of this performance period, Contractor and Client will have the option to renew this agreement.

Out-of-Pocket Expenses / Invoice Procedures

Client will be invoiced twice for the consulting services. Standard Contractor invoicing is assumed to be acceptable. Invoices are due upon receipt.

Client will be invoiced all costs associated with out-of-pocket expenses (including, without limitation, costs and expenses associated with meals, lodging, local transportation and any other applicable business expenses) listed on the invoice as a separate line item. Reimbursement for out-of-pocket expenses in connection with performance of this SOW, when authorized and up to the limits set forth in this SOW, shall be in accordance with Client's then-current published policies governing travel and associated business expenses, which information shall be provided by the Client Project Manager. The limit of reimbursable expenses pursuant to this SOW is estimated to be 15% of the fees unless otherwise authorized in writing and agreed to by both parties via the project change control procedure outlined within.

Regardless of the expense claim by the Contractor, the Client must approve the expense in writing before the expense is incurred.

Payments for services invoiced that are not received within 30-days from date of invoice will be subject to a 5% penalty per calendar month.

Completion Criteria

Contractor shall have fulfilled its obligations when any one of the following first occurs:

- Contractor accomplishes the Contractor activities described within this SOW, including delivery to Client of the materials listed in the Section entitled "Deliverable Materials," and Client accepts such activities and

materials without unreasonable objections. No response from Client within 2-business days of deliverables being delivered by Contractor is deemed acceptance.

- Contractor and/or Client has the right to cancel services or deliverables not yet provided with 20 business days advance written notice to the other party.

Marketing

The Client agrees to authorise the use of its brand (including but not limited to name and logo) for the Contractor's marketing and communication purposes. The Contractor must seek the Client's approval in writing as to what aspects of the Client's brand are to be used and how the Contractor will use these aspects of the Client's brand, and provide proofs of this use ahead of time where possible and applicable.

Intellectual property

At all times before, during and after the engagement, all intellectual property and rights to Client materials remain with the Client. No use, publication or dissemination of materials containing client intellectual property is permitted without prior written consent by the Client. At the expiry of the agreement, all materials issued by the Client for the purpose of the SOW must be returned to the Client in original condition.

Assumptions



CM Media and Communication is delivering services using the best of its knowledge, skills and resources

www.richmclean.com.au representatives will be accessible to respond to ad hoc queries as appropriate

Project Change Control Procedure

The following process will be followed if a change to this SOW is required:

- A Project Change Request (PCR) will be the vehicle for communicating change. The PCR must describe the change, the rationale for the change, and the effect the change will have on the project.
- The designated Project Manager of the requesting party (Contractor or Client) will review the proposed change and determine whether to submit the request to the other party.
- Both Project Managers will review the proposed change and approve it for further investigation or reject it. Contractor and Client will mutually agree upon any charges for such investigation, if any. If the investigation is authorized, the Client Project Managers will sign the PCR, which will constitute approval for the investigation charges. Contractor will invoice Client for any such charges. The investigation will determine the effect that the implementation of the PCR will have on SOW price, schedule and other terms and conditions of the Agreement.

- Upon completion of the investigation, both parties will review the impact of the proposed change and, if mutually agreed, a Change Authorization will be executed.
- A written Change Authorization and/or PCR must be signed by both parties to authorize implementation of the investigated changes.

IN WITNESS WHEREOF, the parties hereto have caused this SOW to be effective as of the day, month and year first written above.

www.richmclean.com.au

CM Media and Communication

Name: _____

Name: _____

Title: _____

Title: _____

Date: _____

Date: _____